THE CENTRAL LAWS (EXTENSION TO JAMMU AND KASHMIR) ACT, 1968

ARRANGEMENT OF SECTIONS

SECTIONS

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THE SCHEDULE.

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THE CENTRAL LAWS (EXTENSION TO JAMMU AND KASHMIR) ACT, 1968

ACT NO. 25 OF 1968

[24*th May*, 1968.]

An Act to provide for the extension of certain Central Laws to the State of Jammu and Kashmir.

BE it enacted by Parliament in the Nineteenth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Central Laws (Extension to Jammu and Kashmir) Act, 1968.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Extension and amendment of certain laws.—(*1*) The Acts mentioned in the Schedule and all rules, orders and regulations made thereunder are hereby extended to, and shall be in force in the State of Jammu and Kashmir*.

(*2*) With effect from the commencement of this Act, the Acts mentioned in the Schedule shall be amended as specified therein.

3. Construction of references to laws not in force in Jammu and Kashmir.—Any reference in any Act mentioned in the Schedule to a law which is not in force in the State of Jammu and Kashmir* shall, in relation to that State, be construed as a reference to the corresponding law, if any, in force in that State.

4. Construction of references to authorities where new Authorities have been constituted.—Any reference by whatever form of words in any law for the time being in force in the State of Jammu and Kashmir* to any authority competent at the date of the passing of that law to exercise any powers or discharge any functions in that State shall, where a corresponding new authority has been constituted by or under any law now extended to that State, have effect as if it were a reference to the new authority.

5. Repeals and savings.—If immediately before the commencement of this Act there is in force in the State of Jammu and Kashmir* any law corresponding to any Act now extended to that State, that law shall, save as otherwise expressly provided in this Act, stand repealed on such commencement:

Provided that the repeal shall not affect—

(*a*) the previous operation of any law so repealed or anything duly done or suffered thereunder,

(*b*) any right, privilege, obligation or liability acquired, accrued or incurred under any law so repealed,

(*c*) any penalty, forfeiture or punishment incurred in respect of any offence committed against any law so repealed, or

(*d*) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if this Act had not been passed:

Provided further that, subject to the preceding proviso, anything done or any action taken (including any appointment or delegation made, notification, instruction or direction issued, form, bye-law or scheme framed, certificate obtained, permit or licence granted or registration effected) under any such law shall be deemed to have been done or taken under the corresponding provisions of the Act now extended to that State, and shall continue to be in force accordingly unless and until superseded by anything done or any action taken under the said Act.

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1. 15th August, 1968, *vide* notification No. G.S.R. 1482, dated 2nd July, 1968, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*).

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

6. Powers to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of any Act now extended to the State of Jammu and Kashmir*, the Central Government may, by order notified in the Official Gazette, make such provisions or give such directions as appear to it necessary for the removal of the difficulty.

(*2*) In particular, and without prejudice to the generality of the foregoing power, any such notified order may,—

(*a*) specify the corresponding authorities within the meaning of section 4,

(*b*) provide for transfer of any matter pending immediately before the commencement of this Act before any court, tribunal or other authority, to any corresponding court, tribunal or other authority for disposal,

(*c*) specify the areas or circumstances in which, or the extent to which, or the conditions subject to which, anything done or any action taken (including any of the matters specified in the second proviso to section 5) under any law repealed by that section shall be recognised or given effect to under the corresponding provision of the Act now extended.

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*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

THE SCHEDULE

(*See* section 2)

ACTS

THE OFFICIAL TRUSTEES ACT, 1913

(2 OF 1913)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE MOTOR VEHICLES ACT, 1939

(4 OF 1939)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

Section 2.—Omit clause (*9A*).

Section 9.—Omit sub-sections (*2*) and (*4*).

Section 28.—Omit sub-sections (*2*), (*3*), (*4*) and (*5*).

Section 29.—In sub-section (*1*),—

(*a*) in clause (*a*) omit "or";

(*b*) Omit clause (*b*).

Section 38.—For sub-section (*4*), substitute—

"(*4*) A certificate of fitness issued under this Act shall, while it remains effective, be valid throughout India.".

Section 42.—In sub-section (*3*), omit clause (*h*).

Section 63.—Omit In sub-section (*5*).

Section 96.—(*a*) In sub-section (*2A*), omit "in the State of Jammu and Kashmir* or" and in the proviso, omit "of the State of Jammu and Kashmir* or";

(*b*) In sub-section (*6*), omit "of the State of Jammu and Kashmir* or".

The Sixth Schedule.—In the first and second columns, after "West Bengal" and the entry relating thereto in the second column, insert "Jammu and Kashmir" and "J & K" respectively.

THE CHARTERED ACCOUNTANTS ACT, 1949

(38 OF 1949)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE TRANSFER OF PRISONERS ACT, 1950

(29 OF 1950)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE ROAD TRANSPORT CORPORATIONS ACT, 1950

(64 OF 1950)

Section 1.—In sub-section (*2*), omit "the State of Jammu and Kashmir* and".

THE MINES ACT, 1952

(35 OF 1952)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE NOTARIES ACT, 1952

(53 OF 1952)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

Section 2.—(*a*) Omit clause (*a*);

(*b*) In the proviso to clause (*d*)—

(*i*) for "either under", substitute "under";

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*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

(*ii*) omit "or by the Master of Faculties in England";

(*iii*) for "any part of India", substitute—

"any part of India:

Provided further that in relation to the state of Jammu and Kashmir* the said period of two years shall be computed from the date on which this Act comes into force in that State;".

Section 9.—In sub-section (*2*), insert—

"Provided that in relation to the state of Jammu and Kashmir* the said period of two years shall be computed from the date on which this Act comes into force in that State.".

THE ESSENTIAL COMMODITIES ACT, 1955

(10 OF 1955)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE COMPANIES ACT, 1956

(1 OF 1956)

Section 1.—In sub-section (*3*),—

(*a*) omit first proviso;

(*b*) in the second proviso, omit "further".

Section 3.—In sub-clause (*f*) (*2*) of clause (*ii*) of sub-section (*1*), insert at the end "in so far as banking, insurance and financial corporations are concerned, and before the commencement of the Central Laws (Extension to Jammu and Kashmir) Act, 1968 in so far as other corporations are concerned".

After section 620B, insert—

"Special provision as to companies in Jammu and Kashmir."

620C. Special provision as to companies in Jammu and Kashmir.—The Central Government may by notification in the Official Gazette, direct that with effect from the commencement of the Central Laws (Extension to Jammu and Kashmir) Act, 1968 or any subsequent date, any of the provisions of this Act specified in the notification shall not apply, or shall apply only with such exceptions and modifications or adaptations as may be specified in the notification, to—

(*a*) any existing company in the State of Jammu and Kashmir*;

(*b*) any company registered in that State under this Act after the commencement of the Central Laws (Extension to Jammu and Kashmir) Act, 1968.".

THE COST AND WORKS ACCOUNTANTS ACT, 1959

(23 OF 1959)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE APPRENTICES ACT, 1961

(52 OF 1961)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

THE ADMINISTRATORS-GENERAL ACT, 1963

(45 OF 1963)

Section 1.—In sub-section (*2*), omit "except the State of Jammu and Kashmir*".

Section 20.—(*a*) In sub-section (*1*), for "the territories to which this Act extends" substitute "India";

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

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(*b*) after sub-section (*2*), insert—

"(*3*) Any probate or letters of administration granted by the High Court for the State of Jammu and Kashmir* before the commencement of the Central Laws (Extension to Jammu and Kashmir) Act, 1968 shall, after such commencement, be as effective as if such probate or letters of administration has been granted under this section.".

Omit section 21.

Section 37.—(*a*) In clause (*a*), for "to which this Act extends", substitute "in India";

(*b*) Omit "or in the State of Jammu and Kashmir*".

Section 56.—For "the territories to which this Act extends" and for "the said territories", substitute "India".

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*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.